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California's Latest Dumb Gun Law is a Ban on Glocks

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Last year, then-Democratic presidential hopeful Kamala Harris insisted in a presidential debate that she is a gun owner and that she and her running mate, Tim Walz, were "not taking anybody's guns away, so stop with the continuous lying about this stuff." Later, she elaborated with 60 Minutes interviewer Bill Whitaker that she owned a Glock pistol that she had fired at the shooting range.

Maybe Harris should have checked with lawmakers in California where she was once attorney general and which she represented in the U.S. Senate. That state just banned the sale of Glock pistols. True, state officials won't take away Kamala's pistol or those already owned by other Californians, but that's cold comfort for anybody looking to purchase new products from the popular gunmaker.

Kamala's Machine Gun

"Democrat Gov. Gavin Newsom signed a bill into law that bans the sale of new Glock guns in California," CBS News reported October 13. "At issue, the new Glock design allows the gun to be easily modified with a Lego-sized piece of plastic known as a 'Glock Switch' that can be 3-D printed to turn it into a fully automatic weapon."

According to California Assemblymember Jesse Gabriel (D–Encino), who introduced the legislation, "As parents and lawmakers, we refuse to stand idly by while our schools and communities are being threatened by illegal machine guns."

As you would expect from a legislator, this is nonsense. While machine guns are illegal in some states, California technically allows their possession by civilians, subject to (heavy) regulation, although it strictly limits the issuance of permits. Federal law also allows civilians to own machine guns "if the machine gun was lawfully registered and possessed before May 19, 1986," again subject to heavy regulation. But Glock switches, like other devices that can convert a firearm to full automatic fire, have been illegal for years under federal law, as well as banned by me-too laws in a growing number of states.

Glock switches are add-on parts that are not commercially available (beware of bogus government-run websites that purport to sell them). They've captured media attention in recent years because these things run in trends. In the past, similar attention was given to drop-in sears which could turn some semiautomatic rifles fully automatic (shoestrings can do this with certain models). Those, too, are already illegal, but stories about them play to the appetite in certain corners of our society for scary gun stories. Now it's Glock's turn to be used as a punching bag by politicians.

According to Gabriel and his allies, they want Glock to change their guns so they can't be converted.

"If these companies won't redesign their weapons to protect our communities, California will hold them accountable," commented Assemblymember Catherine Stefani (D–San Francisco).

Another Law That Will Accomplish Nothing

But as CBS noted in its video report, Glock already redesigned its pistols to prevent insertion of switches; California hasn't approved the new design for sale. The preventive feature can be bypassed with DIY modifications—but the same is true of other firearms in a world where people build guns from scratch.

In fact, countries that tightly restrict firearms find that underground manufacturers quickly turn to submachine guns

(pistol-caliber automatic weapons) because they're easy to make and they're ignoring the law anyway. "Blocks of steel bar and...tubing are really all that is required to turn these out in any small workshop used for bike and automotive repairs," the Impro Guns blog observed last month of automatic weapons used in a Jerusalem terrorist attack.

In other words, innovative people with benign intent and ill will alike can easily make and modify physical objects; and Gabriel, his fellow lawmakers who voted for this nonsensical legislation, and California Gov. Gavin Newsom are exploiting that fact to ban products of one of the most popular firearms manufacturers—or anything with a similar mechanism.

That's because the legislation reaches beyond one brand. The new law doesn't just ban Glock pistols, it defines a now-forbidden "'machinegun-convertible pistol' as any semiautomatic pistol with a cruciform trigger bar that can be readily converted by hand or with common household tools into a machinegun by the installation or attachment of a pistol converter, as specified."

Glock Is Stuck Between a Rock and a Hard Place

That means the reliable mechanism which Glock and its imitators use is now illegal for further sale in California. Glock has been flattered with imitators because the company has stuck with a good design. It has slightly changed that design to discourage conversion to full-automatic fire—though without winning approval in California. But even if it were to swap its current mechanism for something different, that new design would almost certainly still be modifiable into something that Assemblymember Gabriel would call a "machinegun." Of course, a new mechanism created to satisfy politicians' demands is unlikely to be as reliable as the existing one, risking Glock's reputation in return for minimal gain.

Gabriel and his fellow legislators claim to be motivated by crimes in which Glocks converted to automatic fire were used. But criminals are as subject to trends as politicians and headline writers. They learned to hold pistols sideways from Hollywood movies, even though it ruins aim, and they convert Glocks to automatic even though it's hard to control a pistol that's running through its magazine on one pull of the trigger because it's cool. They'll be on to something else next.

As has happened in other countries and is occurring in the U.S., that next thing is likely to be homemade guns built without regard for laws or the alleged concerns of politicians. If those guns are purpose-built submachine guns, they'll be more effective and dangerous than pistols converted to automatic fire.

So, California's Glock ban won't inconvenience criminals who already ignore the rules. Nor will Kamala Harris's California Highway Patrol security detail feel the effects, since police are exempted. Instead, Californians without special connections will be barred from purchasing a popular firearms brand.

Glock Ban Challenged in the Courts

It's too much to hope California lawmakers will admit that they're posturing for no good reason and legislating about matters they don't understand. Relief, if it comes, will arrive through a lawsuit brought by groups and individuals that advocate for self-defense rights. The lawsuit points out that the Supreme Court has held that "a law that bans the sale of—and correspondingly prevents citizens from acquiring—a weapon in common use violates the Second Amendment."

"Every American has a right to choose the tools they trust to defend their lives and liberty. We look forward to ending this insanely unconstitutional scheme just as we have many others," comments Firearms Policy Coalition President Brandon Combs.

Until the relief arrives, Californians should seriously consider just how much deference they want to pay to bad laws passed by ridiculous politicians.

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